

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1327

By: Jech of the Senate

and

Newton of the House

11 An Act relating to the Oklahoma Tourism and
12 Recreation Department; amending 74 O.S. 2021,
13 Sections 2203, 2204, and 2206, which relate to the
14 Oklahoma Tourism and Recreation Commission;
15 transferring certain duties to the Commission;
16 requiring appointed members to possess experience in
17 certain fields; modifying powers and duties of the
18 Executive Director; requiring certain oath;
19 establishing organizational and meeting requirements
20 for the Commission; authorizing the Commission to
21 appoint Executive Director; providing for
22 determination of salary; and providing an effective
23 date.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY 74 O.S. 2021, Section 2203, is
23 amended to read as follows:

1 Section 2203. A. The Oklahoma Tourism and Recreation

2 Commission shall ~~be an advisory body to the Executive Director of~~

3 ~~the Oklahoma Tourism and Recreation Department and shall~~ consist of

4 eight (8) members who shall serve a term of six (6) years.

5 ~~Effective January 14, 2019, all duties and powers of the Commission~~

6 ~~shall be transferred to the Executive Director. Any provision in~~

7 ~~statute that provides to the Commission authority that is not~~

8 ~~advisory in nature shall be deemed to grant the duty or power to the~~

9 ~~Executive Director.~~ No more than one Commission member shall be

10 from any one county. The Lieutenant Governor shall serve as an ex

11 officio voting member of the Commission.

12 B. Each appointed member of the Commission shall demonstrate

13 experience in one or more of the following fields directly related

14 to economic growth and tourism development:

15 1. Hospitality management;

16 2. Venue management;

17 3. Tourism promotion;

18 4. Real estate development;

19 5. Outdoor recreation;

20 6. Marketing and branding; and

21 7. Financial operations.

22 C. One member shall be appointed from each congressional

23 district, who shall be a resident and a qualified elector in the

24 district from which appointed, and the remaining members shall be

1 appointed from the state at large. If congressional districts are
2 redrawn each member appointed shall complete the current term of
3 office at which time a new appointment shall be made in compliance
4 with the redrawn congressional district.

5 ~~C.~~ D. Commission members shall be appointed by the Governor,
6 with the advice and consent of the Senate, and shall serve at the
7 pleasure of the Governor. Whenever a vacancy on the Commission
8 occurs by death, resignation, or otherwise, the Governor shall fill
9 the same by appointment, with the advice and consent of the Senate,
10 and the appointee shall hold office during the unexpired term. Each
11 member shall hold office until a successor has been appointed and
12 qualified. Five members of the Commission shall constitute a
13 quorum, and the vote of the majority of members present shall be
14 necessary for any action to be taken by the Commission. No vacancy
15 in the membership of the Commission shall impair the rights of a
16 quorum to exercise and perform all the rights and duties of the
17 Commission.

18 ~~D.~~ E. With the exception of the ex officio, no member of the
19 Commission shall seek election to a federal, state, or county office
20 while serving on the Commission.

21 F. Each member of the Commission, before serving on the
22 Commission, shall take and subscribe to the constitutional and
23 statutory oaths of office and file the oaths with the Secretary of
24 State. Members of the Commission shall be reimbursed for travel

1 expenses to Commission meetings as provided in the State Travel
2 Reimbursement Act.

3 G. The Commission shall be organized by the Governor who shall
4 appoint from the Commission the chair, the vice chair, and the
5 secretary. The Commission shall adopt rules pursuant to the
6 provisions of the Administrative Procedures Act to execute the
7 powers and duties of the Commission and the Oklahoma Tourism and
8 Recreation Department.

9 H. The Commission may meet monthly and shall meet at least
10 quarterly. The Commission may meet at such other times as it deems
11 necessary for effectively performing its duties and
12 responsibilities. Special meetings may be called by the chair or by
13 any three members of the Commission. The meetings of the Commission
14 shall be subject to the Oklahoma Open Meeting Act.

15 I. The Commission is hereby declared to be a governmental
16 agency and instrumentality of this state with authority to exercise,
17 in addition to those it now has, the rights, privileges, and
18 functions specified.

19 SECTION 2. AMENDATORY 74 O.S. 2021, Section 2204, is
20 amended to read as follows:

21 Section 2204. There are hereby granted to and imposed in the
22 Oklahoma Tourism and Recreation Commission, and in any commission or
23 body which may succeed to the powers, rights, and duties of the
24

1 Commission, Oklahoma Tourism and Recreation Department the following
2 additional powers, rights, and duties:

3 1. Sue and be sued;

4 2. Adopt, use, and alter an official seal;

5 3. Make bylaws for the management and regulation of its
6 affairs;

7 4. Appoint, prescribe the duties, and fix the compensation for
8 officers, agents, and employees;

9 5. Make contracts and execute instruments as in the judgment of
10 the ~~Department~~ Commission are necessary or convenient to the
11 exercise of the powers conferred upon it by law; and

12 6. Promulgate rules and policies necessary and convenient to
13 the exercise of the powers conferred upon it by law.

14 SECTION 3. AMENDATORY 74 O.S. 2021, Section 2206, is
15 amended to read as follows:

16 Section 2206. The chief executive officer of the Oklahoma
17 Tourism and Recreation Department shall be the Executive Director,
18 who shall be appointed by the ~~Governor, with the advice and consent~~
19 ~~of the Senate,~~ Oklahoma Tourism and Recreation Commission, and who
20 shall serve at the pleasure of the ~~Governor~~ Commission and may be
21 removed or replaced without cause. The Executive Director shall be
22 chosen with regard to knowledge, training, experience, and ability
23 to administer the functions of the Department. ~~Compensation for The~~

1 Commission shall establish the salary of the Executive Director
2 ~~shall be determined pursuant to Section 3601.2 of this title.~~

3 SECTION 4. This act shall become effective November 1, 2026.

4

5 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
6 OVERSIGHT, dated 04/14/2026 - DO PASS.

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24